

QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

Workers' Compensation and Rehabilitation Act 2003 (Qld)

Matter No: WC/2024/227

BETWEEN:

CORY LEA SHEPHERD

(Appellant)

and

WORKERS' COMPENSATION REGULATOR

(Respondent)

APPELLANT'S OUTLINE OF SUBMISSIONS

*In Response to Application by Metro South Hospital and Health Service
for Extension of Time under Rule 64E*

(Notice of Non-Party Disclosure (Form 29) sealed 22 April 2026)

Disposition Sought

1. The Appellant respectfully submits that the Application by Metro South Hospital and Health Service ("**MSH**") for an extension of the period in which it may file an objection under Rule 64E of the *Industrial Relations (Tribunals) Rules 2011* should be disposed of as follows:
 - (a) Leave under Rule 64E(1) is refused as a matter of discretion;
 - (b) Any extension required to facilitate orderly production is granted under Rule 64G(2) and confined to no more than seven (7) business days from the date of the Commission's order;
 - (c) MSH is ordered to produce the documents identified in the Form 29 within that window; and
 - (d) Costs of this Application are reserved.

A. Service, Acknowledgment and Notice

2. The Form 29 was sealed by the Industrial Registry on 22 April 2026 and served by email at 5:08 PM on Mr Chris Thorburn, Executive Director, Clinical Governance, Risk and Legal, Metro South Health, as the representative service address for the 2nd and 3rd Affected Parties under Schedule 1. The email copied the Office of Industrial Relations Appeals Unit group inbox (appeals@oir.qld.gov.au) and Ms Renee Matheson personally, and confirmed the Workers' Compensation Regulator (1st Affected Party) had been served separately.

3. At 5:26 PM that day — eighteen minutes after service — Mr Thorburn replied, confirming he had forwarded the email to the Chief People and Partnerships Officer to action, on the basis the matter fell within that officer's portfolio. His reply was copied to OIR-Appeals and Ms Matheson. The Appellant acknowledged the reply at 1:41 PM on 23 April 2026 on the same circulation.
4. By 5:26 PM on 22 April 2026, the sealed Form 29 was in active circulation between two senior MSH officers and was visible to the Regulator's Appeals Unit through both the group inbox and Ms Matheson's mailbox. MSH had eight days of internal handling before its Application was filed.

B. The Application Asserts a Standing the Rules Do Not Confer on a Non-Party

5. The Application's substantive ground is that MSH "has not received the appeal notice (Form 9) and statement of facts and contention (Form 9A)... which were necessary to assess the relevance of the documents sought".
6. The Rules do not give a non-party a procedural right to demand the parties' pleadings as a precondition to compliance. Rule 64B(1) defines the non-party. Rule 64C(1) requires the Notice itself to state the matter in issue. Rule 64E(4) sets out the permissible objection grounds — none contemplates the absence of pleadings as a precondition.
7. The Form 29 discharges Rule 64C(1) on its face. The Continuation Schedule states the matter in issue (the s 32(5)(a) defence under the *Workers' Compensation and Rehabilitation Act 2003* (Qld)) and contains a Relevance Anchor Table tying each Item to specified paragraphs of the Amended Form 9A and to the Form 24 admissions. The information in the Notice articulates direct relevance. The Application's substantive ground proceeds from a premise the served document forecloses.

C. The Discretion Should Not Be Exercised in MSH's Favour

8. Even if leave were available in principle, the discretion should not be exercised. Either MSH could assess relevance within the seven-day window from the Form 29 itself, the knowledge held as employer of the named individuals, the executive notice from 5:26 PM on 22 April 2026, and the ordinary channels between MSH Legal Services and the Office of Industrial Relations — in which case the failure to lodge a Rule 64E(4) objection is administrative inaction; or MSH could not assess relevance despite the foregoing, in which case it must explain what specific impediment prevented it.
9. The Application's covering email demonstrates the capability MSH says it lacked. Prepared under MSH Legal Services file reference KLM26/729 and

addressed to "Dear Registrar", it was transmitted on 30 April 2026 not to the Industrial Registry but to OIR-Appeals and Ms Matheson directly, with the Appellant copied. Ms Lauren Griffin redirected it to the Registry within sixty minutes.

D. If, Contrary to the Above, Leave is Granted

10. Any extension should be (a) fixed in duration with a date certain and not contingent on the supply of pleadings to a non-party; and (b) limited to no more than seven (7) business days, without prejudice to the Appellant's rights to oppose any subsequent objection on its merits.

Orders Sought

11. The Appellant seeks orders consistent with paragraph 1 above.

Filed: 1 May 2026

A handwritten signature in black ink, appearing to read 'Cory Lea Shepherd', is written over a horizontal line.

CORY LEA SHEPHERD
Appellant (Self-Represented)